

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Gross	Team: Team # 6	CCRB Case #: 200905022	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/01/2009 4:00 PM	Location of Incident: Inside of § 87(2)(b)	Precinct: 77	18 Mo. SOL 10/1/2010	EO SOL 10/1/2010	
Date/Time CV Reported Wed, 04/01/2009 9:29 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 04/01/2009 9:29 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alex Viera	14168	945080	077 PCT
2. POM Juan Gonzalez	27448	925370	077 PCT
3. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Mark Jablonski	03353	922540	077 PCT
2. POM Craig Faulhaber	14002	906206	077 PCT
3. POM Leonid Pysin	16342	942386	PSA 2
4. POM Tyronne Howell	03538	941915	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	
B.POM Alex Viera	Force: Officer Alex Viera used a chokehold against § 87(2)(b)	
C.POM Alex Viera	Abuse: Officer Alex Viera drew his gun.	
D.POM Juan Gonzalez	Abuse: Officer Juan Gonzalez drew his gun.	

Synopsis

On April 1, 2009, § 87(2)(b) filed this complaint with the CCRB by e-mail on behalf of her husband, § 87(2)(b) and her § 87(2)(b) son § 87(2)(b). § 87(2)(b) was not present for the incident. On April 1, 2009, at approximately 4:00pm, § 87(2)(b) and § 87(2)(b) were inside § 87(2)(b) in Brooklyn. § 87(2)(b) heard knocking on the door, and when he answered it, he observed Officers Alex Viera and Juan Gonzalez of the 77th Precinct standing outside. The officers informed him that they had received a report of a gun and possible injuries inside of the apartment. The officers asked him if they could search his apartment, and § 87(2)(b) refused, telling the officers they had no right to search his apartment without a warrant. After several minutes of discourse, the officers asked § 87(2)(b) and § 87(2)(b) to step outside of the apartment into the hallway. § 87(2)(b) was then placed in handcuffs and § 87(2)(b) was permitted to re-enter the apartment, standing close to the threshold of the door in sight of § 87(2)(b). Officer Gonzalez entered the apartment and began to question § 87(2)(b) about his father and the presence of a gun in the apartment (**Allegation A**). § 87(2)(b) told § 87(2)(b) several times that he did not have to answer any of the officer's questions. This caused Officer Viera to allegedly approach § 87(2)(b) and grab him with his hand around his neck and squeeze while simultaneously pushing his head backwards into the wall (**Allegation B**). Officer Viera and Officer Gonzalez then entered and looked inside of each of the apartment's rooms with their guns drawn (**Allegation A, C, D**). While § 87(2)(b) remained in the hallway, Officer Tyrone Howell and Officer Leonid Pysin of Public Service Area 2 arrived. Officer Howell entered the apartment briefly (**Allegation A**), before coming outside and leaving the scene with Officer Pysin. Shortly thereafter, Sergeant Mark Jablonski and Officer Craig Faulhaber of the 77th Precinct arrived. Sergeant Jablonski entered the apartment briefly (**Allegation A**), before exiting the apartment and releasing § 87(2)(b) from handcuffs. All four officers then left the scene, and on their way out of the building encountered § 87(2)(b). § 87(2)(b) wrote down Sergeant Jablonski's and Officer Faulhaber's names and badge numbers before they left the scene.

After the conclusion of the interview, mediation was discussed with § 87(2)(b). § 87(2)(b) declined to mediate this complaint § 87(2)(b).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

On April 1, 2009, § 87(2)(b) filed this complaint with the CCRB on behalf of § 87(2)(b) and § 87(2)(b) by e-mail [Enc. 8A-C, 9A-B]. On May 1, 2009, § 87(2)(b) also filed a complaint with IAB by mail, with a letter dated April 15, 2009 [Enc. 10]. § 87(2)(g)

On April 14, 2009, § 87(2)(b) was contacted by phone at which point she informed the investigator that she was only present to witness approximately eight uniformed officers exiting § 87(2)(b) at the end of the incident. She interacted with one of those officers, described as a white male, approximately 5'7"-5'8", who explained to her that they had just searched the apartment. § 87(2)(b) received several of these officers' names and badge numbers before they left the scene.

On April 20, 2009, § 87(2)(b) contacted the investigator and provided the following names and badge numbers that she had stored on her cellular phone: "Jabloizi 3353", "Falli 4402" and "Garaoiz 1413".

§ 87(2)(b)

On April 16, 2009, § 87(2)(b) was contacted by phone and he provided a brief phone statement concerning the incident [Enc. 11]. On April 23, 2009, § 87(2)(b) was interviewed at the CCRB [Enc. 13A-E]. § 87(2)(b) is a § 87(2)(b) black male who stands 6'1" and weighs 210 pounds. He has black hair and brown eyes. § 87(2)(g)

His statements are summarized below.

On April 1, 2009, at approximately 4:00pm, § 87(2)(b) had just come in from work with his son, § 87(2)(b) whom he had just picked up from school. Approximately ten minutes after arriving home, he heard banging on the front door. When he answered the door, he observed two police officers, identified by the CCRB as Officer Gonzalez and Officer Viera, standing outside. Officer Gonzalez was described as white male, approximately 5'7"-5'9", with an athletic build and a goatee. Officer Viera was described as a Hispanic male, approximately 5'5"-5'7", with a short light hair. They were both dressed in uniform.

§ 87(2)(b) spoke to the officers with his door (which opens inwards) cracked slightly open. Officer Gonzalez informed him that they had just received a call about someone having a gun inside the apartment, and that someone inside was injured. Officer Gonzalez posed his questions in an accusatory manner, and his eyes appeared bloodshot. § 87(2)(b) responded, "What are you talking about? You look like your high right now." Officer Gonzalez then began to accuse § 87(2)(b) of having drugs inside the apartment himself.

The conversation continued, and § 87(2)(b) informed the officers that they had received faulty information, explaining that he had just come home from work and there were no guns inside of the apartment. Officer Gonzalez then pushed the door open with his foot and asked, "Can we search your house?" § 87(2)(b) did not try to push the door back, allowing it to swing open further. He told the officers that they needed a search warrant if they wanted to search his apartment. Officer Gonzalez responded, "We don't need a warrant if we have a complaint." Officer Gonzalez then requested § 87(2)(b) and § 87(2)(b) to step outside of the apartment, which they did, stepping into the hallway with the officers.

The conversation ensued in the hallway, and § 87(2)(b) became angered that the officers had his son standing in the hallway in his pajamas. He requested that § 87(2)(b) be allowed back into the apartment, which the officers permitted, and § 87(2)(b) re-entered and took up position close to the doorway in sight of his father. Officer Viera then asked § 87(2)(b) to turn around because he was going to handcuff him. § 87(2)(b) turned around and was handcuffed, and did not provide any sort of physical resistance to being handcuffed. During his phone interview, § 87(2)(b) explained after he was handcuffed he requested a sergeant to come to the scene, although he made no mention of requesting supervision during his formal interview.

Officer Gonzalez entered the apartment and began to question § 87(2)(b). § 87(2)(b) heard Officer Gonzalez asking his son the following questions: "Are you here alone?", "Did you call the cops?", "Does anyone in the house have a gun?", and "Where's your mommy at?" § 87(2)(b) was uncomfortable with the officers questioning his son, and spoke to § 87(2)(b) through the doorway telling him that he did not have to answer any of the officers' questions. At that point, § 87(2)(b) noticed Officer Gonzalez look at Officer Viera, and Officer Viera immediately approached and grabbed him with one hand around his neck, pushing his head against the wall. § 87(2)(b) stated that while he had hold of his neck, Officer Viera squeezed slightly and yelled, "Shut up!" § 87(2)(b) explained that he could breathe, but he felt very vulnerable since he was in handcuffs and his head was up against the wall. The force caused § 87(2)(b) to move down the hallway into a position so he could no longer see into his apartment or see his son. § 87(2)(b) stated that no individuals besides the Officer Gonzalez witnessed Officer Viera coming into physical contact with him.

Two additional officers, identified though the investigation as Officer Howell and Officer Pysin of PSA 2, arrived outside of the apartment. Officer Howell was described as a short black male, and Officer Pysin was described as a tall white male wearing glasses. Both officers were also dressed in uniform. Officer Viera, who had until this point been waiting outside with § 87(2)(b) entered the apartment with Officer Howell. Officer Howell was inside the apartment briefly, before he came back outside and said "We don't need to be here, let's go." Officer Howell and Officer Pysin then left the scene.

Shortly thereafter, two officers identified by the CCRB as Sergeant Jablonski and Officer Faulhaber, arrived at the apartment. Sergeant Jablonski was described as a white male, approximately 6'2"-6'3". Sergeant Jablonski entered the apartment, and then came back outside to speak with § 87(2)(b)

§ 87(2)(b) spoke with Sergeant Jablonski briefly, before he removed his handcuffs. § 87(2)(b) stated that at this point, he was extremely frustrated by the situation and did not want to hear anything that Sergeant Jablonski was saying to him, and could not elaborate on the details of their conversation. At the conclusion of his phone interview, § 87(2)(b) provided the name “Ferrara” and the badge number “14168”, which he explained he wrote on his calendar immediately after the incident. He explained that he obtained the badge number by viewing it off Officer Viera’s badge. § 87(2)(b) estimated that he remained handcuffed in the hallway for approximately 45 minutes. He was not injured during the altercation and did not seek any medical attention after the incident concluded.

§ 87(2)(b) On April 23, 2009, § 87(2)(b) was interviewed at the CCRB [Enc. 12A-C]. § 87(2)(b) who is a § 87(2)(b) black male § 87(2)(b) in Brooklyn, was able to articulate the basic difference between a truth and a lie, explaining to the investigator that there are negative consequences for telling lies. He also demonstrated the ability to decipher a simple lie about the color of the investigator’s pen before the interview began. § 87(2)(b) was interviewed in the presence of his father. His statement is summarized below.

On April 1, 2009, at approximately 4:00pm, two officers came to § 87(2)(b) apartment. They told his father to go into the hallway. He described one of the officers as short white male with black hair and a skinny build. He described the other officer as short male with brown skin. Both officers were wearing uniforms. He said that officers made him stay in the house, and one officer asked him questions about his father. The officer also asked him what his name was, what his father’s name was, and if they had any guns in the house.

Later, § 87(2)(b) saw three officers (the first two officers and a third officer for whom he could not provide a physical description) search the apartment with their guns drawn. Each officer walked into a different room of the apartment. While they were searching, he was standing inside the apartment while his father was standing outside in the hallway. He estimated that the officers were inside his apartment for approximately 10 minutes.

Results of the Investigation

Identification of Officers Interviewed

At the conclusion of his phone interview, § 87(2)(b) provided the name “Ferrara” and the badge number “14168”, stating he believed the officers who arrived at his apartment were from the 77th Precinct. Officer Viera works in the 77th Precinct and has the badge number “14168”. Additionally, § 87(2)(b) described “Officer Ferrara” as a Hispanic male, approximately 5’5”-5’7”, with a short light hair. Officer Viera is a Hispanic male who stand 5’8” and has short hair. On April 1, 2009, the 77th Precinct roll call [Enc. 26A-J] listed Officer Viera as assigned to patrol sector KM with Officer Gonzalez. The SPRINT [Enc. 24A-B] verified that sector K responded to § 87(2)(b) at 3:42pm. § 87(2)(g)

The SPRINT [Enc. 24A-B] also detailed that a 77th Precinct Sergeant responded to the § 87(2)(b) at 4:06pm. § 87(2)(b) provided the investigator with several officer names and badge numbers of officers she observed leaving the building. Two of those badge numbers, “3353” and “4402” coincided with Sergeant Jablonski (03353) and Officer Faulhaber (14002), respectively. The 77th Precinct’s tour 3 roll call [Enc. 26A-J] from April 1, 2009, lists Sergeant Jablonski as the patrol supervisor and Officer Faulhaber assigned to be his operator. § 87(2)(g)

Subject Officer: Officer Alex Viera, 77th Precinct

On June 17, 2009, Officer Viera was interviewed at the CCRB [Enc. 19A-C]. Officer Viera is a § 87(2)(b) -old Hispanic male who stands 5’8” feet tall and weighs 180 pounds. He has black hair and brown eyes. On April 1, 2009, Officer Viera worked from 3:00pm to 11:35pm, and was assigned to patrol sector KM. He was dressed in uniform and working with Officer Gonzalez, operating a marked patrol vehicle, RMP #2299. In his memo book [Enc. 18A-C], Officer Viera noted that at 3:42pm, he received a job concerning a dispute with a firearm at § 87(2)(b) § 87(2)(b). At 3:50pm, they arrived on scene. Officer Viera then notes: “Male [defendant] § 87(2)(b) [date of birth] § 87(2)(b). Son of suspect § 87(2)(b) father refused son’s date of birth. Refused phone number. Mother not present. Male wearing white shirt, blue pants, white socks and son wearing pajamas. Conducted a canvass for second

party with negative results.” At 4:44pm, Officer Viera noted that he completed a UF250 and Domestic Incident Report in regards to this incident. Those reports and Officer Viera’s oral testimony are summarized below.

On April 1, 2009, Officer Viera completed a UF250 report for § 87(2)(b) who was stopped for a duration of 20 minutes [Enc. 17A-B]. Officer Viera listed the circumstances that led to § 87(2)(b) stop as “Actions indicative of casing victim or location; furtive movements; actions indicative of engaging in a violent crime; and other- [uncompliant]”. He added several additional factors for the stop as “Proximity to scene of suspected offense; evasive, false or inconsistent responses to officers’ questions; and changing directions at the sight of officers.” On the report, he also noted that he placed his hands on § 87(2)(b) in order to place him in handcuffs.

Officer Viera also completed a Domestic Incident Report [Enc. 16A-B]. § 87(2)(b) is listed as the suspect, and his relationship to the victim is listed as his “brother”. The victim is reported as an “unfounded” black male. Officer Viera wrote, “At time and place of occurrence, 911 call of a dispute with brothers and one has a firearm and is bleeding. Suspect[ed] party became nervous and inconsistent with inquiry quest. Suspect[ed] party became hostile and minor was present. Supervisor on scene. No other persons present. No firearm recovered. Suspect[ed] party uncooperative.”

On April 1, 2009, at approximately 3:30pm, Officer Viera and Officer Gonzalez responded to a radio run concerning two brothers fighting inside of § 87(2)(b) of § 87(2)(b). The radio run indicated that one of the brothers was injured and the other brother possessed a firearm. § 87(2)(b) is a building located inside § 87(2)(b) a New York City Housing Authority complex. When they arrived outside of the apartment, Officer Viera heard a male voice yelling from within the apartment in question, which sounded like someone was fighting inside. He could not recall if it sounded like the voices of two adults. They knocked on the door of § 87(2)(b) and an individual, identified as § 87(2)(b) opened the door. Officer Viera could not recall hearing a television on inside the apartment once the door was open. § 87(2)(b) immediately became hostile to the officer’s inquiries about the report they received. He initially provided the officers with a fake name and refused to produce identification. Officer Viera attempted to explain to § 87(2)(b) that they received report of a fight with a gun, to which § 87(2)(b) responded “Go fuck yourself” and requested the officers leave. When Officer Viera questioned § 87(2)(b) about the presence of a gun inside the apartment, he told him again, “Go fuck yourself. You have no right to be here.” § 87(2)(b) hostile behavior prompted the officers to call Sergeant Jablonski to the scene. The officers then radioed the dispatcher in attempt to obtain additional information about the incident and to see if they could locate the complainant. When the call back number was dialed, the line went straight to voicemail.

While they were waiting for Sergeant Jablonski to respond, the officers requested that § 87(2)(b) and his young son, identified as § 87(2)(b) to step outside of the apartment into the hallway. Officer Viera asked them to do so for the officers and their own safety. § 87(2)(b) complied, taking position in the middle of the hallway. Officer Viera continued to question § 87(2)(b) about the presence of weapons inside of the apartment, and he continued to refuse to answer any of his questions. § 87(2)(b) became increasingly angry and continued to curse at the officers. This prompted the officers to handcuff § 87(2)(b). That decision was based on § 87(2)(b) agitated behavior and the potential presence of a fire arm inside of the apartment. Officer Viera could not recall who handcuffed § 87(2)(b) but explained that no physical force was used to place him in handcuffs. After he was handcuffed, § 87(2)(b) calmed down and ceased yelling. Officer Viera did not have to verbally direct § 87(2)(b) to quiet down after he was placed in handcuffs. Officer Viera could only recall asking for his patience and cooperation. He denied placing his hand around § 87(2)(b) neck and telling him to shut up. He did not witness any other officers’ place their hands around § 87(2)(b) neck or otherwise come into physical contact with § 87(2)(b) during the incident.

The officers then spoke with § 87(2)(b) bringing him towards the door of the apartment and asking him questions like “what’s your name?” According to Officer Viera, § 87(2)(b) nervously answered the officers’ questions. Officer Viera could not recall if § 87(2)(b) said anything while they were speaking with his son.

Sergeant Jablonski eventually arrived at the scene, and told the officers to conduct a canvass of the apartment. Officer Viera did not enter the apartment until the Sergeant Jablonski arrived at the scene. Officer Viera and Officer Gonzalez then entered the apartment and canvassed while Sergeant Jablonski remained outside with § 87(2)(b). Officer Viera and Officer Gonzalez had their guns drawn when they entered the apartment. Officer Viera had his gun drawn due to the information they had received about

a fire arm inside the apartment. Officer Viera and Officer Gonzalez searched through the rooms of the apartment to verify that no other individual was present or injured inside. He estimated the search took approximately three minutes, and they did not locate anyone else inside of the apartment. During this time, two housing officers also responded to the scene, although Officer Viera did not know who they were and could not verify their roles in this incident.

After the search revealed negative results, the officers' released § 87(2)(b) from the handcuffs and Officer Viera attempted to obtain information from him in order to complete a Domestic Incident Report. § 87(2)(b) was uncooperative and did not want to provide the Officer Viera with any additional information. After he completed the Domestic Incident Report and a UF250 report, Officer Viera left the scene. While he was exiting the apartment, he observed a female on the sidewalk outside of the building, identified as § 87(2)(b) yelling and screaming "Why are you fucking guys coming into my place?" Officer Viera was unsure of whom this person was at the time, and he simply left the scene without interacting with her.

Subject Officer: Officer Juan Gonzalez, 77th Precinct

On July 22, 2009, Officer Gonzalez was interviewed at the CCRB [Enc. 23A-C]. Officer Gonzalez is a § 87(2)(b)-old Hispanic male stands 5'9" feet tall and weighs 215 pounds. He has an athletic build with tattoos on both arms, black hair, brown eyes, and facial hair groomed into a goatee style. On April 30, 2009, Officer Gonzalez worked from 4:00pm to 12:00am, and was assigned to patrol sectors KM. He was dressed in uniform, and was working with Officer Alex Viera assigned to a marked patrol vehicle, RMP #4702. Officer Gonzalez's memo book [Enc. 22A-C] entries were similar to those of Officer Viera's. At 3:42pm, he noted that they received a job concerning a dispute between brothers involving a firearm at § 87(2)(b). At 3:50pm, he noted that they arrived on scene. On the fly sheet he wrote, "[4:45pm] [Report of dispute] with firearm. Sprint § 87(2)(b) Suspect inconsistent with common inquiries. DIR prepared/ UF 250 prepared. Sergeant [Jablonski] on scene. Suspect very agitated at the doorway upon answer."

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Officer Gonzalez did not echo Officer Viera's statement that they heard arguing inside of the apartment when they arrived, explaining that he could only hear the sound of a television when he knocked on the door. Officer Gonzalez also testified that § 87(2)(b) not his father, initially answered the door. After briefly questioning § 87(2)(b) about the presence of adults inside of the apartment, § 87(2)(b) came to the door and began to speak with the officers telling § 87(2)(b) "Don't talk to them. Don't talk to the police."

Officer Gonzalez verified that when they attempted to explain the situation to § 87(2)(b) and he was uncooperative and became increasingly agitated with the officers as they inquired who else was inside of the apartment. Officer Gonzalez explained to § 87(2)(b) that they could not leave the apartment until they verified that someone else was not inside the apartment with a gun. Officer Gonzalez also confirmed that § 87(2)(b) angry demeanor and refusal to answer the officers' questions furthered their suspicion about the situation, which prompted them to radio for Sergeant Jablonski to respond to the scene and place § 87(2)(b) in handcuffs. Officer Gonzalez stated that § 87(2)(b) was handcuffed by Officer Viera. Officer Gonzalez's § 87(2)(g) said that § 87(2)(b) resisted being placed in handcuffs by shrugging his shoulders slightly when Officer Viera attempted to take hold of his hands. Officer Gonzalez immediately informed § 87(2)(b) that he was not under arrest, and he eased up and allowed himself to be handcuffed by Officer Viera. Beyond taking hold of his hands, Officer Viera did not use any additional force on § 87(2)(b) to place him in handcuffs.

Officer Gonzalez entered the apartment and briefly questioned § 87(2)(b) after Sergeant Jablonski arrived, asking § 87(2)(b) several questions including, "Is any one else in the apartment?" and "Has anyone left?" § 87(2)(b) appeared a bit nervous answering his questions, but did not appear frightened. Officer Gonzalez explained that while he was speaking with § 87(2)(b), § 87(2)(b) continued to implore his son not to answer any of the officers' questions. Officer Gonzalez had to tell § 87(2)(b) to stop screaming and yelling, because it appeared to be making § 87(2)(b) more nervous. At no point did he have to come into physical contact with § 87(2)(b) to stop him from

talking to § 87(2)(b). He stated that he did not place his hand around § 87(2)(b) neck and tell him to shut up, nor did he witness Officer Viera or any other officer at the scene doing so.

Officer Gonzalez confirmed that he visually canvassed the apartment with his gun drawn, citing the same reasoning as Officer Viera (the potential presence of a firearm) for unholstering his service weapon. Officer Gonzalez could not recall if Sergeant Jablonski specifically authorized the officers to search the apartment.

Witness Officer: Sergeant Mark Jablonski, 77th Precinct

On July 2, 2009, Sergeant Jablonski was interviewed at the CCRB [Enc. 21A-B]. Sergeant Jablonski is a § 87(2)(b)-old white male who stands 6'0" and weighs 170 pounds. He has blue eyes and salt-and-pepper hair. On April 1, 2009, Sergeant Jablonski worked from 2:50pm to 11:47pm, and was assigned to patrol supervision. He was dressed in uniform and was working with Officer Faulhaber, assigned to a marked patrol vehicle, RMP #4781. In his memo book [Enc. 20A-B], Sergeant Jablonski wrote that he arrived at § 87(2)(b) at 4:05pm and that he had resumed patrol at 4:25pm. Sergeant Jablonski, who arrived at the scene approximately 25 minutes after Officer Viera and Officer Gonzalez responded, contrasted Officer Viera's and Officer Gonzalez's statements, as he testified that the officers had canvassed the apartment before he arrived at the scene. His statements are condensed below.

Sergeant Jablonski arrived at the scene with Officer Faulhaber at approximately 4:05pm. He observed § 87(2)(b) standing handcuffed outside of the apartment in the hallway with Officer Viera and Officer Gonzalez. One of the officers approached Sergeant Jablonski and briefed him on the situation, informing him that they had arrived at the apartment in regards to a report of a firearm inside. That officer explained that for their safety, they had handcuffed § 87(2)(b) while they canvassed the inside the apartment to confirm that there was not second or injured party present inside. Sergeant Jablonski stated that the officers were never inside of the apartment while he was at the scene. The door of the apartment remained open, and § 87(2)(b) was standing inside close to the doorway. Sergeant Jablonski did not speak or interact with § 87(2)(b).

Sergeant Jablonski could not recall § 87(2)(b) demeanor while he was at the scene. The officers made no indications to Sergeant Jablonski that they had any difficulty dealing with § 87(2)(b) before he arrived at the scene, and did not indicate that they had to use physical force to place him in handcuffs. He did not witness any officers using physical force on § 87(2)(b). Sergeant Jablonski spoke with § 87(2)(b) but could not recall the specifics of the conversation. Sergeant Jablonski then looked inside the apartment to confirm the officers report that no one else was inside. He stated that his body likely crossed the threshold of the door, but that he only took several steps inside to visually inspect the living room area. Once he confirmed that the apartment was secure, he ordered the officers take the handcuffs off § 87(2)(b) and to prepare a UF250 report and a Domestic Incident Report.

After the reports were completed, the officers left the scene together. Sergeant Jablonski confirmed that they encountered an angry § 87(2)(b) who wrote down their badge numbers while they were exiting the building.

Witness Officer: Officer Craig Faulhaber, 77th Precinct

On June 16, 2009, Officer Faulhaber was interviewed at the CCRB [Enc. 15A-B]. Officer Faulhaber is a § 87(2)(b)-old white male who stands 6'1" and weighs 239 pounds. On April 1, 2009, Officer Faulhaber worked from 4:00pm to 12:00am and was acting as Sergeant Jablonski's operator. He was dressed in uniform and was operating a marked patrol vehicle, RMP #4781. His memo book [Enc. 14A-B] details that he and Sergeant Jablonski responded to Officer Gonzalez's and Officer Viera's request for additional units regarding a gun run and assault at § 87(2)(b) at 4:15pm. At 4:30pm, he noted that the job was handled by Officer Gonzalez and Officer Viera.

Officer Faulhaber had difficulty recalling the specifics of this incident, § 87(2)(g). He verified that when they arrived at the scene, he observed § 87(2)(b) standing handcuffed while § 87(2)(b) was standing inside the doorway of the apartment. He did not observe any officer at the scene, including himself, enter the apartment. Officer Faulhaber stated that he had no interaction with § 87(2)(b) while he was on the scene, and could not recall any of the information Officer Viera or Officer Gonzalez conveyed to Sergeant Jablonski about the incident.

Officer CCRB History

Officer Gonzalez has had one allegation substantiated by the CCRB during his nine year tenure with the NYPD [Enc. 7A-B]. In case 200500715, the CCRB substantiated a physical force allegation against him and recommended charges. The NYPD chose to discipline Officer Gonzalez with instructions.

Officer Viera has not had a complaint substantiated against him during his two year tenure with the NYPD [Enc. 6].

Civilian CCRB History

This complaint represents all three members of the § 87(2)(b) family's first and only complaint with the CCRB [Enc. 3, 4, 5].

Civilian Criminal History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian Civil Claim

On § 87(2)(b), the New York City Law Department subpoenaed this case file [Enc. 29A-D] as an individual named § 87(2)(b) filed a notice of claim against the city for the amount of \$250,000. However, the claimant filed a claim concerning a different incident that occurred in the Bronx on § 87(2)(b) § 87(2)(g)

911 Call and Police Communication

On April 1, 2009 at 3:39pm, an individual who identified himself as § 87(2)(b) dialed 911 and requested assistance at § 87(2)(b) § 87(2)(b) [Enc. 24A-B, 25A-E]. § 87(2)(b) who sounded shaken and at times can be heard breathing heavily on the recording, stated that he had an altercation with his brother, § 87(2)(b) who pulled a gun out on him. § 87(2)(b) also indicated that he had a small cut over his left eye as a result of the incident, but stated that he did not need immediate medical attention, but he wanted the police to come and "get § 87(2)(b) out of here". The operator confirmed § 87(2)(b) was requesting assistance on the seventh floor of the building inside apartment "§ 87(2)(b) before informing § 87(2)(b) that assistance was on the way.

The SPRINT [Enc. 24A-B] indicated that sector K (Officer Gonzalez and Officer Viera) were the first unit to arrive at the scene at 3:42. The recording of communication verified that Housing Unit 9261 (Officer Howell and Officer Pysin) arrived at 3:58pm, followed by Sergeant Jablonski and Officer Faulhaber at 4:06pm. The SPRINT [Enc. 24A-B] and recording [Enc. 25A-E] verify that the call back number was attempted twice by the dispatcher by the request of Officer Gonzalez, but both times the line went straight to an unidentified voicemail box with the message "You've reached the right person at the wrong time." The recording also reveals that Sergeant Jablonski raised the dispatcher for a third time requesting the call back number. At 4:43pm, sector K closed the job as 90F1 (Domestic Incident Report prepared) and 93Q (other report prepared), approximately one hour after they first responded to the scene.

Attempts to Contact and Identify Source of ANI-ALI Number

On June 22, 2009, the ANI-ALI number found on the SPRINT print out was contacted. A male answered the phone but did not identify himself as § 87(2)(b). He also stated that he did not reside in § 87(2)(b) and has only been assigned the telephone number for approximately one month. Subsequent attempts to obtain previous subscriber information by subpoena request to T-Mobile were unsuccessful [Enc. 29G]. Both COLES Directory and LexisNexis searches were conducted in an attempt to locate a land line number for anyone with the last name "§ 87(2)(b) who resided in § 87(2)(b). Results from both searches were negative.

Police Documents

The UF250 Report [Enc. 17A-B] and Domestic Incident Report [Enc. 16A-B], both completed by Officer Viera, are enclosed. The 77th Precinct's tour 3 roll call [Enc. 26A-J], listing Officer Viera and

Officer Gonzalez as assigned to patrol sectors KM (RMP #4781) and Sergeant Jablonski and Officer Faulhaber assigned to patrol supervision (RMP #4781), is also enclosed. The PSA 2 tour 3 roll call [Enc. 27A-J] listing Officer Howell and Officer Pysin assigned to patrol sectors CD (RMP #9261), is also enclosed.

As mentioned previously, a print-out of SPRINT Job § 87(2)(b) is enclosed [Enc. 24A-B]. A verbatim transcription of § 87(2)(b) 911 call, as well as a transcription of all relevant police communications concerning the incident, are enclosed [Enc. 25A-E]. The compact disc containing those recordings is contained within the case file.

Conclusions and Recommendations

Officer Identification

Officer Viera, Officer Gonzalez, Officer Faulhaber, and Sergeant Jablonski were all identified by comparing their assignments listed on the 77th Precinct's roll call [Enc. 26A-J] to the units listed as responding on the SPRINT [Enc. 24A-B]. Officer Viera, Officer Gonzalez, Officer Faulhaber and Sergeant Jablonski all verified their involvement in this incident during their respective interviews.

A review of the police communication recording revealed that housing unit 9261 arrived at the scene at 3:58pm, 16 minutes after Officer Viera and Officer Gonzalez had responded. § 87(2)(b) described the second set of arriving officers as a tall white male wearing glasses with and short black male. He confided that the short black male entered the apartment briefly before returning to the hallway and exiting the scene with the tall white officer. On April 1, 2009, the PSA 2 tour 3 [Enc. 27A-J] roll call listed Officer Howell and Officer Pysin as assigned to patrol sector CD (RMP #9621). Officer Howell is a black male and Officer Howell is a white male. The two officers assigned to RMP #9621 during the previous tour were both Hispanic males. § 87(2)(g)

§ 87(2)(b) indicated in his testimony that Officer Gonzalez, Officer Viera, Officer Howell and Sergeant Jablonski all crossed the plane of his doorframe and entered his apartment at some point during the incident. § 87(2)(g)

§ 87(2)(b) stated that the officer who approached him and grabbed him by the neck while he was handcuffed was the shorter of the two officers who had initially arrived at the scene. He immediately wrote down this officer's name on his calendar after the incident as "Ferrara". Officer Viera's name closely resembles that of "Ferrara" and was the shorter of two officers who initially responded to the scene. § 87(2)(g)

§ 87(2)(b) testified that he observed the officers inside of the apartment with their guns drawn. Both Officer Viera and Officer Gonzalez verified that they had their guns drawn during the canvass of the apartment. § 87(2)(g)

Undisputed Facts

Officer Gonzalez, Officer Viera, and Sergeant Jablonski entered and visually searched the rooms inside § 87(2)(b) § 87(2)(b) Officer Gonzalez and Officer Viera's guns were drawn while they canvassed the apartment.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g), § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) testified that he and his son had just arrived at the apartment and that they were the only individuals inside. The SPRINT indicated that the complainant had an injury over his left eye, and no party interviewed discussed the presence of such injury. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) The caller identified himself as § 87(2)(b) and stated that he was feuding with his brother § 87(2)(b) and affirmed the operator's clarification attempts that he was inside apartment "§ 87(2)(b) on the § 87(2)(b) floor. Subsequent calls by the investigator to the § 87(2)(b) management office confirmed that there were no "§ 87(2)(b) delineated apartments inside § 87(2)(b) As mentioned, the SPRINT and recording of police communication indicated that the dispatcher attempted to contact § 87(2)(b) twice to verify his location while the officers were at the scene; however, both calls went straight to voicemail. As also mentioned, the investigator was unable to reach or verify the source of this 911 call despite numerous attempts and investigative actions. § 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Officer Viera and Officer Gonzalez testified that they waited until Sergeant Jablonski arrived before they canvassed the location; an assertion not supported by § 87(2)(b) Officer Faulhaber's, or Sergeant Jablonski's testimony. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) testified that while he was in handcuffs he told § 87(2)(b) not to answer Officer Gonzalez's questions. Officer Gonzalez stated that he had to speak § 87(2)(b) in order to calm him down, as he felt that his interjections were making § 87(2)(b) nervous. Officer Viera could not recall saying anything to § 87(2)(b) after he was handcuffed. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) alleged that this response materialized when Officer Viera approached him, grabbed him around the neck, pushed his head back into the wall of the hallway while squeezing and saying "Shut up!" § 87(2)(b) stated that he was uninjured as a result and that no one was in the hallway to witness this event. Officer Viera denied coming into physical contact with § 87(2)(b) in anyway, besides taking his hands in order to place him in handcuffs. No officers interviewed testified that they observed any physical force being used against § 87(2)(b) after he was handcuffed. § 87(2)(g)

Allegation A) Officers entered and searched § 87(2)(b) § 87(2)(b) in Brooklyn.

According to Barry Kamins New York Search and Seizure Section 4.03 [3][c], the “Emergency Doctrine” concerning warrantless entries and searches encompasses situations where, “...the police have reasonable grounds to believe there is an emergency at hand and there is an immediate need for their assistance for the protection of life or property.” [Enc. 1A-E] Section 4.03 [3][c] also notes that, “Courts have also condoned police entry when there is a report of violent fight involving a gun” [Enc. 1A-E].

According to the SPRINT, the officers had a report from an identified source concerning an altercation that had occurred with a firearm (and potential injuries) inside of § 87(2)(b) § 87(2)(b)

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation B) Officer Alex Viera used a chokehold on § 87(2)(b)

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b) alleged that Officer Viera approached him while he was handcuffed and grabbed him around his neck, forcing his head backwards into the wall while squeezing. § 87(2)(b) was not injured as a result of this action and testified that no witnesses were present in the hallway to see this action occurring. All of the officers interviewed disputed § 87(2)(b) allegation, testifying that Officer Viera did not come into physical contact with § 87(2)(b) after he was handcuffed. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation C) Officer Alex Viera drew his gun.

Allegation D) Officer Juan Gonzalez drew his gun.

In *Police Department v. Gliner* [Enc. 2A-D] the administrative court ruled that, “The policy of the Department is that an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another’s personal safety... the Department permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered.”

As mentioned on numerous occasions, the SPRINT indicated the potential presence of a fire arm inside of § 87(2)(b) § 87(2)(b) § 87(2)(b), § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: